

Court No. - 36

Case :- WRIT - A No. - 6909 of 2023

Petitioner :- Tarun Kumar Pathak

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Siddharth Khare, Sr. Advocate

Counsel for Respondent :- C.S.C., Abhishek

Srivastava, Kaushalendra Nath Singh

Hon'ble Ashutosh Srivastava, J.

1. Learned counsel for the petitioner is permitted to implead the Superintending Engineer, Electricity Distribution, Circle II, Paschimanchal Vidyut Vitran Nigam Limited, Noida, District Gautam Buddh Nagar, as party respondent, during the course of the day.

2. Heard Shri Ashok Khare, learned Senior Counsel, assisted by Shri Siddharth Khare, learned counsel for the petitioner and Shri Abhishek Srivastava, learned counsel, representing the respondent nos. 2 and 3. Shri Ritham Gupta, Advocate, under the authority of Shri Kaushalendra Nath Singh, learned counsel representing the respondent nos. 4 and 5. Learned Standing Counsel has accepted notice on behalf of the respondent no. 1.

3. The petitioner, who had been working as Executive Engineer, with Paschimanchal Vidyut Vitran Nigam Limited, has approached this Court assailing the orders dated 04.03.2023, passed by the Board of Directors, U.P. Power Corporation Limited, Lucknow, in Appeal, whereby, the Appeal has been rejected and the order dated 20.05.2022, passed by the Chairman, U.P. Power Corporation Limited, Lucknow, dismissing the petitioner from service has been upheld as also the consequential recovery order dated 05.08.2022, issued by the Superintending Engineer, Electricity Distribution Circle-II, Paschimanchal Vidyut Vitran Nigam Limited, Noida, District Gautam Budh Nagar.

4. Shri Khare, learned Senior Counsel, submits that the services of the petitioner have been dispensed with on non existent grounds as much as the petitioner was posted as Executive Engineer, Electricity Distribution Division-III, Noida, District Gautam Budh Nagar, from 6th February, 2020 to 06.07.2021, whereas, the allegations on the basis of which disciplinary proceedings have been initiated pertain to the year 2011 to 2019 i.e. period prior to the posting of the petitioner as Executive Engineer Electricity

Distribution Division-III, Noida. The entire disciplinary proceedings are without authority of law being contrary to Regulations 6 & 7 of the U.P. Power Corporation Limited Employees (Discipline and Appeal) Regulations 2020. The Charge Sheet against the petitioner has been issued without the approval of the Chairman of the Corporation. He further submits that at no point of time any evidence has been led to establish the charges against the petitioner and no oral inquiry was conducted into the charges or for proving the documents relied upon against the petitioner and in such view of the matter the order of dismissal as well as the Appellate order are not sustainable. He further submits that the recovery pursuant to the impugned orders is totally unwarranted.

5. Considering the relief, that has been sought in the present writ petition, this Court is of the opinion that the same can be adjudicated only after receipt of response from the respondents. Accordingly, four weeks' time is granted to Shri Abhishek Srivastava and Shri Kaushalendra Pratap Singh, learned counsels for the respondents to file counter affidavit. Two weeks thereafter is granted to the learned counsel for the petitioner to file rejoinder affidavit.

6. List this case on 7th August, 2023.

7. Considering the submissions advanced, it is provided that till the next date of listing, the impugned order dated 05.08.2022, directing recovery of a sum of Rs. 4,66,764/-, from the petitioner, consequent to the dismissal order, shall remain in abeyance.

Order Date :- 26.5.2023

Deepak/

Court No. - 33

Case :- WRIT - A No. - 6909 of 2023

Petitioner :- Tarun Kumar Pathak

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Siddharth Khare, Sr. Advocate

Counsel for Respondent :- C.S.C., Abhishek Srivastava, Kaushalendra Nath Singh

Hon'ble J.J. Munir, J.

Due to paucity of time, the matter could not be taken up.

List again on **29.08.2023** in the additional cause list.

Interim order, if any, shall remain in operation till the next date of listing.

Order Date :- 7.8.2023

Deepak

Court No. - 33

Case :- WRIT - A No. - 6909 of 2023

Petitioner :- Tarun Kumar Pathak

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Siddharth Khare, Sr. Advocate

Counsel for Respondent :- C.S.C., Abhishek
Srivastava, Kaushalendra Nath Singh

Hon'ble J.J. Munir, J.

Due to paucity of time, the matter could not be taken up.

List this writ petition on **06.09.2023**.

Interim order, if any, shall continue to remain in operation till the next date of listing.

Order Date :- 29.8.2023

Prashant D.

Court No. - 33

Case :- WRIT - A No. - 6909 of 2023

Petitioner :- Tarun Kumar Pathak

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Siddharth Khare, Sr. Advocate

Counsel for Respondent :- C.S.C., Abhishek
Srivastava, Kaushalendra Nath Singh

Hon'ble J.J. Munir, J.

Due to paucity of time, the matter could not be taken up.

List in the additional cause list again on **15.09.2023**.

Interim order, if any, shall continue to operate till the next date of listing.

Order Date :- 6.9.2023

I. Batabyal

Court No. - 33

Case :- WRIT - A No. - 6909 of 2023

Petitioner :- Tarun Kumar Pathak

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Siddharth Khare, Sr. Advocate

Counsel for Respondent :- C.S.C., Abhishek
Srivastava, Kaushalendra Nath Singh

Hon'ble J.J. Munir, J.

Due to paucity of time, the matter could not be taken up.

List in the additional cause list on **21.09.2023**.

Interim order, if any, shall continue to remain in operation till the next date of listing.

Order Date :- 15.9.2023

Prashant D.

Court No. - 33

Case :- WRIT - A No. - 6909 of 2023

Petitioner :- Tarun Kumar Pathak

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Siddharth Khare, Sr. Advocate

Counsel for Respondent :- C.S.C., Abhishek
Srivastava, Kaushalendra Nath Singh

Hon'ble J.J. Munir, J.

Due to paucity of time, the matter could not be taken up.

List in the additional cause list on **04.10.2023**.

Interim order, if any, shall continue to remain in operation till the next date of listing.

Order Date :- 21.9.2023

Prashant D.

Court No. - 33

Case :- WRIT - A No. - 6909 of 2023

Petitioner :- Tarun Kumar Pathak

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Siddharth Khare, Sr. Advocate

Counsel for Respondent :- C.S.C., Abhishek Srivastava, Kaushalendra Nath Singh

Hon'ble J.J. Munir, J.

Due to paucity of time, the matter could not be taken up.

List again on **12.10.2023** in the additional cause list.

Interim order, if any, shall continue to remain in operation till the next date of listing.

Order Date :- 4.10.2023

Deepak

Court No. - 33

Case :- WRIT - A No. - 6909 of 2023

Petitioner :- Tarun Kumar Pathak

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Siddharth Khare, Sr. Advocate

Counsel for Respondent :- C.S.C., Abhishek
Srivastava, Kaushalendra Nath Singh

Hon'ble J.J. Munir, J.

Due to paucity of time, the matter could not be taken up.

List in the additional cause list on **19.10.2023**.

Interim order, if any, shall continue to remain in operation till the next date of listing.

Order Date :- 12.10.2023

Prashant D.

Court No. - 33

Case :- WRIT - A No. - 6909 of 2023

Petitioner :- Tarun Kumar Pathak

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Siddharth Khare, Sr. Advocate

Counsel for Respondent :- C.S.C., Abhishek Srivastava, Kaushalendra Nath Singh

Hon'ble J.J. Munir, J.

Due to paucity of time, the matter could not be taken up.

List again on **03.11.2023** in the additional cause list.

Interim order, if any, shall remain in operation till the next date of listing.

Order Date :- 19.10.2023

Deepak

Court No. - 33

Case :- WRIT - A No. - 6909 of 2023

Petitioner :- Tarun Kumar Pathak

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Siddharth Khare, Sr. Advocate

Counsel for Respondent :- C.S.C., Abhishek

Srivastava, Kaushalendra Nath Singh

Hon'ble J.J. Munir, J.

Due to paucity of time, the matter could not be taken up.

List in the additional cause list again on **17.11.2023**.

Interim order, if any, shall continue to remain in operation till the next date of listing.

Order Date :- 3.11.2023

NSC

Court No. - 33

Case :- WRIT - A No. - 6909 of 2023

Petitioner :- Tarun Kumar Pathak

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Siddharth Khare, Sr. Advocate

Counsel for Respondent :- C.S.C., Abhishek
Srivastava, Kaushalendra Nath Singh

Hon'ble J.J. Munir, J.

Due to paucity of time, the matter could not be taken up.

List on **30.11.2023**.

Interim order, if any, shall continue to remain in operation till the next date of listing.

Order Date :- 17.11.2023

Prashant D.

Court No. - 33

Case :- WRIT - A No. - 6909 of 2023

Petitioner :- Tarun Kumar Pathak

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Siddharth Khare, Sr. Advocate

Counsel for Respondent :- C.S.C., Abhishek

Srivastava, Kaushalendra Nath Singh

Hon'ble J.J. Munir, J.

Due to paucity of time, the matter could not be taken up.

List in the additional cause list again on **08.12.2023**.

Interim order, if any, shall remain in operation till the next date of listing.

Order Date :- 30.11.2023

NSC

Court No. - 33

Case :- WRIT - A No. - 6909 of 2023

Petitioner :- Tarun Kumar Pathak

Respondent :- State of U.P. and others

Counsel for Petitioner :- Siddharth Khare & Senior Advocate

Counsel for Respondent :- C.S.C., Abhishek Srivastava,
Kaushalendra Nath Singh

Hon'ble J.J. Munir,J.

Heard Mr. Ashok Khare, learned Senior Advocate assisted by Mr. Kauntey Singh, learned Counsel for the petitioner, Mr. Abhishek Srivastava, learned Counsel appearing on behalf of respondent Nos. 2 and 3 and Mr. Girijesh Kumar Tripathi, learned Additional Chief Standing Counsel appearing on behalf respondent No. 1.

Arguments concluded.

Reserved for judgment.

Order Date :- 8.12.2023

I. Batabyal

RESERVED

IN THE HIGH COURT OF JUDICATURE AT ALLAHABAD

WRIT - A NO. 6909 OF 2023

Tarun Kumar Pathak

....Petitioner

Versus

State of U.P. and others

....Respondents

Appearance :-

For Petitioner : Mr. Ashok Khare, Senior Advocate

Mr. Kauntey Singh, Advocate

For Respondents : Mr. Abhishek Srivastava, Advocate for respondents Nos. 2 and 3

Mr. Girijesh Kumar Tripathi, learned Additional Chief Standing Counsel for respondent No. 1

HON'BLE J.J. MUNIR, J.

This writ petition is directed against an order dated passed by the Chairman, Uttar Pradesh Power Corporation Limited, Lucknow dated 20.05.2022, dismissing the petitioner from service, amongst other penalties awarded and the appellate order of the Board of Directors, Uttar Pradesh Power Corporation Limited, Lucknow¹ dated 04.03.2023, dismissing the petitioner's appeal and affirming the Chairman.

2. The facts giving rise to the petition are these :

¹ 'Corporation' for short

The petitioner was appointed a Junior Engineer in the employ of the Corporation. While in harness, the petitioner applied for direct recruitment to the post of an Assistant Engineer. The petitioner was promoted to the post of an Executive Engineer on 28.09.2017. The petitioner was posted on different assignments during the period of his employment from 06.02.2020 to 06.07.2021. He was posted as the Executive Engineer, Electricity Distribution Division-III, NOIDA, District Gautam Budh Nagar. Much prior to the petitioner's posting at the Electricity Distribution Division-III, NOIDA, Gautam Budh Nagar, the then Superintending Engineer, Electricity Distribution Circle, NOIDA, by an order dated 12.11.2011, sanctioned load for a project in the name of Lotus Zing on an application made by a certain M/s. Three C Projects Private Limited. The aforesaid sanction was followed by the preparation of a line chart on a technically feasible and approved line route from the 220/130/33 KV Sub-Station, Sector 129, NOIDA to the proposed plot of Lotus Zing, GH 01A, Sector 168, NOIDA. A demand note was prepared on 31.03.2012 and the demand raised was met by the customer who made good the requisite deposit on 03.11.2012. An agreement was executed between the Paschimanchal Vidyut Vitran Nigam Limited, Meerut² through the Executive Engineer, Electricity Distribution Division-III, NOIDA and the promoters of the project on 15.04.2013 for installation of the requisite connection. The then Executive Engineer issued a line order dated 15.04.2013, permitting the line construction work after an estimate was drawn up. The Executive Engineer concerned at the time was one Ranjit Singh Yadav. A supplementary estimate was issued also by the then Executive Engineer, which too was made good by the promoter on 27.08.2013. In between 23.09.2013 and 17.02.2018, repeat notices were issued by the Executive Engineer concerned for completing construction of the line, but the promoter defaulted in completing that construction. On 24.10.2018, a temporary electricity connection of 500 KW was sanctioned

² 'Distribution Corporation' for short

for a period of three months for construction purposes. This temporary connection was energized on 29.01.2019. The said temporary connection was extended from time to time on condition that a permanent connection would be on a single-point basis.

3. In the year 2018, proceedings stood instituted against the promoter under the Insolvency and Bankruptcy Code, 2016 before the National Company Law Tribunal, New Delhi³. On 28.09.2019, an order was made, appointing an interim resolution professional. The sanction of a permanent load of 10000 KVA had been made on a single point basis in the year 2011. It was on the basis of the said connection that the builder had constructed a building on a single-point connection on the infrastructure available and given possession to several buyers. This was also certified by the then Executive Engineer. It is pleaded that a perusal of the reply filed on behalf of the Distribution Corporation in answer to the insolvency proceedings before the NCLT would show that the temporary connection was taken by the corporate debtor for the purpose of construction, but no construction was going on contemporaneous in point of time at site. To the contrary, the electricity supplied by the Distribution Corporation was being utilized by the residents for domestic purpose. It is the petitioner's case that the aforesaid stand of the Distribution Corporation before the NCLT demonstrates that the construction of flats was complete and flat owners were in occupation, who were utilizing electricity supply on single point system, through a temporary connection.

4. On the 13th of September, 2019, an order was passed by the NCLT, directing the Distribution Corporation to restore the temporary electricity supply to the corporate debtor, which had been disconnected on 03.09.2019. In compliance, the temporary connection was restored. Later on, on 26.09.2019, an application was made to the Managing Director of

3 'NCLT' for short

the Distribution Corporation for the provision of a permanent connection, as sanctioned in the year 2011. During this period of time, the petitioner was not posted at the Electricity Distribution Division-III, NOIDA. The post of the Executive Engineer at the said Division was then held by one Ajay Kumar. On 27.01.2020, Ajay Kumar stood promoted as the Superintending Engineer, and the charge fell to the petitioner's hands on 16.02.2020.

5. The petitioner's further case is that on 06.03.2020, the interim resolution professional appointed by the NCLT wrote a letter to the petitioner for granting permission to construct the line, as it had been granted *vide* letter dated 15.04.2013. In response, the petitioner sent a reply dated 07.03.2020, pointing out that a considerable time had lapsed in the intervening period. In this period of time, the 13th Amendment to the U.P. Electricity Supply Code, 2005⁴ was enforced. The said amendment was challenged before the U.P. Electricity Regulatory Commission, Lucknow on the foot of an order passed by the said Commission on 17.05.2019 to the effect that change from a single point connection to a multiple point one is required only in case 51% or more of the resident occupiers of the building were willing for such conversion. It was keeping in mind the aforesaid order that the petitioner released the sanctioned load. It is pleaded that the aforesaid facts would demonstrate that all essential steps towards sanction of load, deposit of the requisite demand of money and execution of agreement had taken place at a point of time when the petitioner had no concern with the Electricity Distribution Division-III, NOIDA. He was posted as the Executive Engineer at the said Division under the orders of the Managing Director of the Distribution Corporation on 30.02.2020; not earlier. In the month of September, 2022, an anonymous complaint was lodged to the effect that energization of the sanctioned load had been made on a single-point

4 'U.P. Supply Code' for short

connection, even though, by virtue of the 13th Amendment to the U.P. Supply Code the same was prohibited. On the basis of the aforesaid complaint, a three-member preliminary inquiry committee was constituted. The said preliminary inquiry committee had required the petitioner to submit copies of documents demanded by them. The documents demanded were made available by the petitioner *vide* his letters dated 23.09.2020, 29.10.2020 and 31.03.2021.

6. The further case of the petitioner is that the three-member preliminary inquiry committee called for no explanation from him, but required him to supply copies of some documents which were promptly supplied. On the 6th of July, 2021, the Managing Director of the Distribution Corporation passed an order suspending the petitioner from service pending inquiry. A charge-sheet was issued to the petitioner on 25.09.2021 by a two-member committee, comprising the Chief Engineer/ Convenor of the Inquiry Committee and the Accounts Officer serving as a member of the Committee. A charge-sheet was issued with the approval of the Managing Director of the Distribution Corporation. A perusal of the charge-sheet shows that the following ten charges were framed against the petitioner :

आरोप सं०-1:-

उपभोक्ता M/s Three C Project Pvt. Ltd., Plot No. GH-01, Sector 168, Noida के पक्ष में अधीक्षण अभियन्ता, विद्युत नगरीय वितरण मण्डल, नोएडा के कार्यालय ज्ञाप सं० 3696/विनविम/नो/एस-5/काम दिनांक 02.11.2011 के द्वारा 10000 केवीए का एकल बिन्दु संयोजन (बहुमंजिला भवन हेतु) स्वीकृति प्रदान की गयी थी, जिसके लाईन निर्माण हेतु खण्ड कार्यालय द्वारा उपभोक्ता को पत्र संख्या 6091/वि०न०वि० खं०तृ०/नो/दिनांक 31.03.2012 के द्वारा टी०सी० निर्गत की गयी जिसके सापेक्ष में उपभोक्ता द्वारा दिनांक 03.11.2012 को टी०सी० की धनराशि जमा करा दी गयी। खण्ड कार्यालय द्वारा दिनांक 15.04.2013 को अनुबन्ध प्रक्रिया पूर्ण करा ली गयी थी। इसके उपरान्त खण्ड कार्यालय के द्वारा उपभोक्ता से लगातार पत्राचार करने के उपरान्त भी उपभोक्ता के द्वारा वर्ष 2019 तक लाईन के निर्माण से सम्बन्धित कोई भी कार्य नहीं कराया गया। तत्कालीन अधिशासी अभियन्ता श्री पंकज गोयल द्वारा उपभोक्ता को संशोधित प्राक्कलन प्रेषित किया गया किन्तु उपभोक्ता के द्वारा संशोधित प्राक्कलन की धनराशि जमा नहीं करायी गयी। उपभोक्ता के द्वारा अपने उक्त परिसर पर दिनांक 29.01.2019 में अस्थायी

संयोजन लिया गया। उपभोक्ता के द्वारा अपने अस्थायी संयोजन लेने के पश्चात अर्थात् दिनांक 29.01.2019 के बाद ही Electrical Infrastructure तैयार कराया गया जबकि उ०प्र०, विद्युत प्रदाय संहिता के तेहरवें संशोधन द्वारा दिनांक 10.08.2018 को जारी की गयी अधिसूचना द्वारा अनुच्छेद 4.9 में संशोधन करते हुए समस्त घरेलू बहुमंजिला भवनों में नये विद्युत संयोजन को एकल बिन्दु पर निर्गत किये जाने की व्यवस्था को संशोधित कर बहुउपयोग बिन्दु पर अवमुक्त किये जाने हेतु निर्देशित कर दिया गया था (संलग्नक-6)। तेहरवें संशोधन के further proceeding के दिनांक 17.05.2019 को UPERC द्वारा जारी किये गये निर्देशों के बिन्दु सं० 11(9) (संलग्नक-7) में निहित प्राविधानों "Conversion of single point to multi point connection in existing building or in building under construction, where electrical load was sanctioned on single point & installation of electrical work has been completed or about to complete, will be done only if 51% or more residents/occupiers/owners/allotees are willing for such conversion." के अनुसार यदि विकासकर्ता द्वारा दिनांक 29.01.2019 के पूर्व कोई भी Electrical work Installation प्रारम्भ ही नहीं किया गया था, तो ऐसी स्थिति में एकल बिन्दु पर संयोजन क्यों निर्गत किया गया। इस प्रकार उक्त उपभोक्ता को एक बिन्दु पर संयोजन निर्गत किया जाना उ०प्र० विद्युत आपूर्ति संहिता के (तेहरवें संशोधन) में निहित प्राविधानों का स्पष्ट उल्लंघन है।

आरोप सं०-2:-

आपके द्वारा बिना संशोधित किये प्राकृक्कन एवं अधीक्षण अभियन्ता, वि०ना०वि०सं०द्वि०, नोएडा से तकनीकी अनुमोदन प्राप्त किये बिना ही लाईन निर्माण कराये जाने की अनुमति दी गयी तथा बैंक डैटिंग करते हुए PRE EXECUTED ESTIMATE तैयार कर जांच समिति को भ्रमित करने का कुप्रयास किया गया।

आरोप सं०-3:-

M/s Three C Project Pvt. Ltd., Plot No. GH-01, Sector 168, Noida के संयोजन हेतु वर्ष 2011 में बनाये गये इस्टीमेट की ड्राईंग में 33 केवी लाईन GH-01A, Sector 168, Noida के परिसर से रोड पार करने हेतु तथा 220 केवी उपकेन्द्र, 129 के समीप 02 स्थानों पर भूमिगत की जानी थी परन्तु वर्तमान में उक्त 33 केवी लाईन 04 स्थानों पर भूमिगत पायी गयी। अतः आप द्वारा उपभोक्ता के सुपरविजन शुल्क पर कराये जा रहे लाईन निर्माण कार्य का कोई सुपरविजन नहीं किया/कराया गया जिसके कारण स्वीकृत लाईन चार्ट के स्थान पर 33 केवी लाईन उपभोक्ता के अनुबन्धित 'A class Contractor' द्वारा 02 के स्थान पर 04 जगह जगह भूमिगत करा दी गयी, जिसके लिए आप पूर्ण रूप से उत्तरदायी है।

आरोप सं०-4:-

आपके द्वारा अपने खण्ड में M/s Three C Project Pvt. Ltd., Plot No. GH-01, Sector 168, Noida के प्रकरण से पहले कोई भी PRE EXECUTED ESTIMATE नहीं बनवाया गया था, बल्कि शिकायती प्रकरण में जानबूझकर लीपापोती करने के उद्देश्य से PRE EXECUTED ESTIMATE बनाया जाना दिखाया गया।

आरोप सं०-5:-

आपके द्वारा जांच समिति को अपने पत्रांक 6323 दिनांक 29.10.2020 के द्वारा अवगत कराया गया था कि तत्कालीन अधिशासी अभियन्ता इं० पंकज गोयल द्वारा कोई भी संशोधित प्राक्कलन व पैकेज की प्रति खण्ड कार्यालय में नहीं पाई गयी और न ही उक्त प्रकरण की पत्रावली में इस तथ्य से सम्बन्धित किसी भी पत्र में कोई उल्लेख है जबकि Estimate Sanction Register (अवधि 04/2017 से 03/2019) के क्र०सं० 44 में "Revised Estimate for giving supply to M/s Three C Project Pvt. Ltd., Plot No. GH-01, Sector 168, Noida on 33 KV independent Feeder" Estimate No. 179 Date 05-05-2017 रु०. 58,34,552.00 की प्रविष्टि तथा इं० पंकज गोयल, तत्कालीन अधिशासी अभियन्ता, विद्युत नगरीय वितरण खण्ड-तृतीय, नोएडा द्वारा हस्ताक्षरित दर्ज पायी गयी, इसके पूर्व दिनांक 21.09.2020 को आपके खण्ड कार्यालय में जांच समिति के द्वारा अभिलेखों की जांच के समय भी संशोधित प्राक्कलन की प्रति देखी गयी थी। आपके द्वारा उक्त संशोधित प्राक्कलन जांच समिति को उपलब्ध न कराकर जानबूझकर भ्रमित करने के उद्देश्य से सम्बन्धित पत्रावली से गायब कर दिया गया।

आरोप सं०-6:-

उ०प्र०, विद्युत प्रदाय संहिता के प्रस्तर 4.6 के अनुसार भार की स्वीकृति के बाद तैयार किये गये प्राक्कलन तिथि से तीन माह के लिए विधिमान्य रहता है किन्तु आप द्वारा माह 11/2011 में स्वीकृत भार पर बनाये गये प्राक्कलन पर लगभग 08 वर्ष पश्चात भी लाईन निर्माण की अनुमति दी गयी, इस प्रकार आप द्वारा विद्युत प्रदाय संहिता के नियमों का स्पष्ट रूप से उल्लंघन किया गया।

आरोप सं०-7:-

लाईन निर्माण कार्य पूर्ण होने के पश्चात आप द्वारा कोई भी अन्तिम प्राक्कलन तैयार नहीं कराया गया जो कि पुनः विद्युत प्रदाय संहिता के प्रस्तर 4.6(g) का स्पष्ट उल्लंघन है, इस प्रकार आप द्वारा नियमों का उल्लंघन चार निगम को राजस्व हानि पहुंचायी गयी।

आरोप सं०-8:-

आपके द्वारा M/s Three C Project Pvt. Ltd., Plot No. GH-01, Sector 168, Noida के परिसर पर 33 केवी की विद्युत आपूर्ति शुरू कराये जाने के बाद भी पूर्व में स्वीकृत अस्थायी संयोजन से सम्बन्धित सीटी/पीटी यूनिट डबल पोल, मीटरिंग इत्यादि को डिस्मेन्टल नहीं कराया गया जोकि आपकी स्पष्ट लापरवाही का प्रमाण है।

आरोप सं०-9:-

आप द्वारा तत्कालीन अधिशासी अभियन्ता इं० पंकज गोयल द्वारा संशोधित कर जारी किये गये प्राक्कलन में अंकित रु०. 58,34,552.00 की अतिरिक्त धनराशि उपभोक्ता से नहीं जमा करायी गयी तथा विभाग को आर्थिक नुकसान पहुंचाया गया।

आरोप सं०-10:-

आप द्वारा संशोधित प्राक्कलन सम्बन्धी प्रपत्र संयोजन की पत्रावली से गायब कर गलत बयान देते हुए जांच समिति को गुमराह कर जांच को प्रभावित करने की कोशिश की गयी, जोकि आपकी सत्यनिष्ठा संदिग्ध होने का स्वतः प्रमाण है।

अतः आप अपने कर्तव्यों के प्रति लापरवाही बरतने, विभागीय अभिलेख गायब करने, विभाग को राजस्व का नुकसान पहुंचाने, विभाग की छवि धूमिल करने, दायित्वों का निर्वहन न करने तथा उ०प्र० सरकारी आचरण नियमावली-1956 के नियम 3 के पालन न करने के लिए प्रथम दृष्टया दोषी पाये गये हैं।

7. In support of the charge-sheet, all that was mentioned in evidence were purportedly two documents, which read :

1. मुख्य अभियन्ता (वाणिज्य) एवं अध्यक्ष जांच समिति कार्यालय प्रबन्ध निदेशक, प०वि०वि०नि०लि०, मेरठ के पत्रांक 1212 / प्र०नि० / प०वि०वि०नि०लि०/मे०/ वा०/दिनांक 23.06.2021 की छायाप्रति जांच आख्या कुल 135 पृष्ठ सत्यापित छायाप्रति।

2. सरकारी कर्मचारी आचरण नियमावली-1956 के नियम-03 का संगत अंश।

8. The petitioner filed his reply to the charge-sheet, dated 25.10.2021. The reply was accompanied by several documents. A notice dated 15.12.2021 was issued to the petitioner by the Inquiry Committee, fixing 21.12.2021 as the date for appearance before them. The petitioner participated in the proceedings scheduled on 21.12.2021, but on the said date, no proceedings were held. It is averred in paragraph No. 14 that subsequent to 21.12.2021, which was the scheduled date, no other date was fixed for holding the inquiry. It is emphasized in paragraph No. 42 of the writ petition that no inquiry, whatsoever, was held on 21.12.2021. No evidence was led to establish any charge against the petitioner. It is also averred in paragraph No. 42 that no evidence was led for proving any of the documents relied upon against the petitioner. It is averred in paragraph No. 43 that without conducting any inquiry proceedings, the Inquiry Committee proceeded to submit an inquiry report, holding the petitioner guilty of several charges, with Charge No. 8 being partly proved. On 21.02.2022, the Chairman of the Corporation issued a notice to the petitioner, along with a copy of the inquiry report, requiring him to show cause. The petitioner filed his objection/show-cause on 15.03.2022. The

Chairman of the Corporation, by the impugned order dated 20.05.2022, punished the petitioner in the following terms :

- (i) Dismissal from service;
- (ii) Recovery of an amount of Rs.4,66,764/- constituting 8% supervision charge out of the revised amount of estimate amounting to Rs.58,38,552/- .

9. Aggrieved by the order dated 05.08.2022, the petitioner appealed to the Board of Directors of the Corporation on 01.08.2022. In the meantime, a recovery order had been passed by Superintending Engineer on 05.08.2022, which was challenged separately by the petitioner through Writ - A No. 15140 of 2022. The said writ petition was dismissed *vide* order dated 23.09.2022. The grounds of appeal were also supplemented by a supplementary memorandum. The appeal was dismissed by the Board *vide* order dated 04.03.2023. There are some details of proceedings pleaded by the petitioner, including some writ petitions from interlocutory orders, as it appears, that were filed and dismissed as infructuous, but those details are no more relevant, and are, therefore, not being alluded to.

10. Disillusioned by the orders dated 20.05.2022 and 04.03.2023, this writ petition has been instituted under Article 226 of the Constitution.

11. A notice of motion was issued by a detailed order on 26.05.2023. A counter affidavit was filed on behalf of the Power Corporation, represented by respondents Nos. 2 and 3, on 06.09.2023, to which, a rejoinder affidavit was filed on 14.09.2023. The parties having exchanged affidavits, when the matter came up before this Court on 08.12.2023, learned Counsel for parties were heard and judgment reserved.

12. Heard Mr. Ashok Khare, learned Senior Advocate assisted by Mr. Kauntey Singh, learned Counsel for the petitioner, Mr. Abhishek Srivastava, learned Counsel appearing on behalf of respondents Nos. 2 and 3 and Mr. Girijesh Kumar Tripathi, learned Additional Chief Standing Counsel appearing on behalf respondent No. 1.

13. Amongst other things, it is pleaded in paragraphs Nos. 42 and 43 of the writ petition that no inquiry was conducted by the Inquiry Committee. No evidence was led by the Establishment to prove the charges. It is averred in paragraph No. 75 of the writ petition that for the imposition of a major penalty, there exists an elaborate procedure for the Inquiry Committee to follow, which includes the holding of an oral inquiry. In the present case, no such oral inquiry whatsoever was conducted. It is specifically averred in paragraph No. 77 that on 21.12.2021, no inquiry was held, and subsequent to the said date, no date was scheduled for the holding of an inquiry. It is averred in paragraph No. 78 that at no point of time, any evidence was led by the Establishment to prove the charges, particularly, by way of oral evidence.

14. In the counter affidavit filed on behalf of respondents Nos. 2 and 3, that is to say, the Corporation, paragraphs Nos. 8 to 109 of the writ petition have been denied in one breath. It is pleaded that there were ten charges against the petitioner in the charge-sheet, including the one relating to granting a single-point connection to M/s. Three C Projects Private Limited for a 10000 KVA load, which is said to be in teeth of Clause 4.9 of the U.P. Supply Code, amended by Uttar Pradesh Electricity Regulatory Commission in exercise of powers under Section 50 of The Electricity Act, 2003. It is said that the U.P. Supply Code mandates that all new and existing multi-storied buildings shall have multi-point connections. The new scheme was introduced with the aim to curtail exploitative behaviour of builders/intermediaries, who were pleasing consumers by overcharging them for enhanced capacity. Thus, the new consumer-friendly scheme introduced by the 13th Amendment put in place a transparent mechanism by way of the multi-point connection designed to directly supply electricity to consumers by eliminating the intermediaries, to wit, the builders/the residents welfare association.

15. It is submitted that in accordance with Rule 7 of the U.P. Power Corporation Limited Employees (Discipline and Appeal) Rules, 2020⁵ for the imposition of a major penalty, a letter dated 15.12.2021 was issued, which asked the petitioner to appear before the Inquiry Committee and he did appear on 21.12.2021. He was orally examined, which is evident from the affidavit dated 21.12.2021 submitted before the Inquiry Committee. Thereafter, he was served with a show-cause notice and punished in accordance with law.

16. Upon hearing learned Counsel for parties and perusing the record, what this Court finds is that the case here is one of imposition of a major penalty. There were, in all, ten charges relating to the electricity connection given to M/s. Three C Projects Private Limited. The charges relate to securing of permissions, non-preparation of estimates, non-dismantling of the earlier temporary metering equipment, much of which would require, apart from mere papers, proof by oral testimony of witnesses. What this Court cannot ignore is the fact that for a salutary principle, it is well settled that in a case involving the imposition of a major penalty, the inquiry before the Committee has to be formal proceedings. The Inquiry Committee have to convene themselves into an impartial tribunal and distance themselves from the Establishment. They have to act as impartial arbiters. It is imperative for the Inquiry Committee to require the Establishment to prove the charges, starting from scratch. The charges must be presumed to be dormant allegations, with no weight of evidence attached to them. The charges being laid by the Establishment, it is the bounden duty of the Inquiry Committee to require the Establishment to produce, through a Presenting Officer, evidence, both documentary and oral. In an inquiry, where it is likely that major penalty may be imposed, it is also imperative that oral evidence must be led, or, in other words, witnesses examined in support of the

5 'Rules of 2020' for short

charges. The Inquiry Committee cannot presume the charges to be proof of themselves and then require the delinquent to come forward before them, where, in the name of oral inquiry, they may hold an interrogation in order to be satisfied that the delinquent is innocent. The delinquent cannot be subjected to the burden of proving his innocence through a gruelling question session by members of the Inquiry Committee. This is not the way at all that an inquiry can or ought be held, particularly, one where a major penalty is likely to be imposed. A perusal of the record here appears to show, particularly the way the pleas have been raised and answered, that no date, time and place of the inquiry was effectively fixed. It was fixed in namesake, with the only date i.e. 21.12.2021 being scheduled. It is specifically averred by the petitioner that on the said date, no proceedings took place and the inquiry was adjourned. Thereafter, no date was fixed, and yet, the Inquiry Committee submitted their report to the Chairman of the Corporation, who acted on its basis to proceed further, and ultimately, punished the petitioner, holding him guilty.

17. The established procedure for the imposition of a major penalty, as noticed above, would require the Inquiry Committee to have asked the Establishment to produce evidence before them in the petitioner's presence, which would include documentary evidence as well as witnesses presented through a Presenting Officer. After the documents and witnesses had been produced in support of each of the charges, they ought to have been made available to the petitioner for cross-examination. The cross-examination being over, the Inquiry Committee would then be obliged to give opportunity to the petitioner to enter defence and lead such evidence as he thought necessary. The petitioner could also lead documentary and oral evidence after the Establishment had discharged their burden, as above described. In case, the petitioner chose to produce witnesses, it would have been open to the Establishment to cross-examine them.

18. This procedure does not envisage an inquiry of the kind that has been done here. It appears that the Inquiry Committee have sat back in their office and on the single date that was fixed, when the petitioner appeared, they did not hold any inquiry. Thereafter, in the petitioner's absence, they went through the charge-sheet, the petitioner's reply and read documents that were filed in support by the Establishment for themselves. The documents appended to the charge-sheet cannot be considered material or evidence in support of the charges, unless the documents are introduced in a formal fashion on behalf of the Establishment through a Presenting Officer and proved by witnesses produced, wherever necessary, to prove the documents, all to be done in the presence of the delinquent, in this case, the petitioner. All of this procedure has been given a complete go-by. This marked departure from salutary procedure would vitiate the entire proceedings, leading to the orders of punishment passed against the petitioner being vitiated. The proceedings would be vitiated from the stage of the charge-sheet.

19. The question that there is a salutary principle, which requires, in the case of a major penalty, the minimum requirement of fixing a date, time and place for holding the inquiry, and further, requiring the Establishment to prove the charges through production of oral and documentary evidence before the Inquiry Committee by a Presenting Officer on their behalf is well-acknowledged, in view of the law laid down by the Supreme Court in **State of Uttar Pradesh and others v. Saroj Kumar Sinha**⁶, **Roop Singh Negi v. Punjab National Bank and others**⁷, **State of Uttaranchal and others v. Kharak Singh**⁸ and the Bench decisions of this Court in **State of U.P. and another v. Kishori Lal and another**⁹, **Smt.**

6 (2010) 2 SCC 772

7 (2009) 2 SCC 570

8 (2008) 8 SCC 236

9 2018 (9) ADJ 397 (DB) (LB)

Karuna Jaiswal v. State of U.P.¹⁰ and State of U.P. v. Aditya Prasad Srivastava and another¹¹.

20. In view of what has been said above and the settled legal position, this Court is of opinion that the impugned orders cannot be sustained.

21. In the result, this petition **succeeds** and is **allowed**. The impugned order dated 20.05.2022 passed Chairman, Uttar Pradesh Power Corporation Limited, Lucknow and the order 04.03.2023 of the Board of Directors, Uttar Pradesh Power Corporation Limited, Lucknow are hereby **quashed**. A *mandamus* is issued to the respondents to reinstate the petitioner in service forthwith and pay him current salary. It will be open to the respondents, if they elect to pursue fresh proceedings, to proceed against the petitioner from the stage of the charge-sheet, bearing in mind the remarks in this judgment. If the respondents elect to proceed afresh against the petitioner, the petitioner would not be entitled to arrears of his emoluments and these would abide by the event in the disciplinary proceedings. In case, however, the respondents elect not to pursue fresh proceedings against the petitioner, the petitioner would be entitled to 50% emoluments for the period of time that he has remained out of service. It would also be open to the respondents, if they decide to proceed against the petitioner afresh, considering the gravity of the charges, to place the petitioner under suspension pending inquiry, in which event, the inquiry shall be concluded expeditiously, wherein the petitioner will cooperate. If the respondents avail of the said option and elect to place the petitioner under suspension, during the period of suspension, the petitioner shall be regularly paid subsistence allowance, without asking him to produce a non-alternative engagement certificate.

22. There shall be no order as to costs.

10 2018 (9) ADJ 107 (DB) (LB)

11 2017 (2) ADJ 554 (DB) (LB)

23. The Registrar (Compliance) is directed to communicate this order to the Chairman, Uttar Pradesh Power Corporation Limited, Lucknow and the Board of Directors, Uttar Pradesh Power Corporation Limited, Lucknow, through the Chairman of the said Corporation.

Allahabad

May 31, 2024

I. Batabyal

(J.J. MUNIR, J.)